

#	Case Name	Tentative Ruling
101	Austin v. City of Westminster, 2024-01422151	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED Defendant City of Westminster (“City”) moves for summary judgment against the Complaint of plaintiff William Harrison Austin (“Plaintiff”). No timely opposition was received. Plaintiff alleges he was injured when his motorcycle lost traction on a roadway maintained by the City with an excessive amount of loose gravel. The City argues there is no evidence that it created the condition at issue and, therefore, Plaintiff must show that the City had notice of the gravel for a long enough time to have protected against it. The City contends there is no evidence of any notice because the City had an adequate inspection system in place pursuant to which streets are routinely inspected for defects and maintenance is performed in response to service requests from the public and/or city crews and, despite this inspection system, the alleged defect was not discovered before Plaintiff’s incident. The City further asserts that it had not received any prior claims or complaints about the street where Plaintiff’s accident occurred prior to Plaintiff’s incident. “When a person is injured on public property, the public entity's duty of care and the circumstances under which it is breached turn on (1) whether “the property was in a dangerous condition”; (2) whether “the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred”; and (3) whether the public entity was negligent.” (Martinez v. City of Beverly Hills (2021) 71 Cal.App.5th 508, 517-518.) “Public property is in a ‘dangerous condition’ when it ‘creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.’” (Id. at p. 518.) “Even if there is a dangerous condition on public property, a public entity is liable for injuries caused by it only if the entity was negligent.” (Ibid.) “A public entity may be

		negligent—and hence liable for injuries caused by a dangerous condition on its property—in one of two ways.” (Ibid.) If the public entity created the dangerous condition or failed to take measures to protect against it upon actual or constructive notice thereof, the public entity may be negligent. (Id. at pp. 518-519.) “A public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2(b).) On the issue of due care, it is relevant whether the public entity maintained and operated an inspection system “that was reasonably adequate . . . to inform the public entity whether the property was safe for [] use” and whether the public entity “maintained and operated such an inspection system with due care and did not discover the condition.” (71 Cal.App.5th at p. 519; Gov. Code, § 835.2(c).) The undisputed facts and evidence confirm that the City’s roadways are routinely inspected for defects and the City did not receive any prior claims or complaints about the street prior to Plaintiff’s accident. There is no evidence of any actual notice of the condition prior to the accident. The fact that the City routinely inspects its streets for defects and, despite its routine inspections, had no notice of the loose gravel before Plaintiff’s accident also demonstrates that the condition had not existed for such a period of time sufficient to charge the City with constructive notice. Further, the loose gravel or debris that caused Plaintiff’s fall was “off the typical area of travel for a vehicle.” (Ex. B at 17:6-10 [Deposition of Officer Jonathan Mullin].) Therefore, any dangerousness of the condition of the loose gravel was not obvious in nature. The City has met its burden to show it is entitled to summary judgment as a matter of law and Plaintiff has not opposed the Motion in any attempt to raise a triable issue of material fact. In light of the above, the Motion for Summary Judgment is GRANTED.
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102	Blood v. Wang, 2026-01554903	MOTION TO EXPUNGE LIS PENDENS – DENIED Defendant Huan Wang (“Defendant”) moves for an order expunging the Notice of Pendency of Action (Lis Pendens) recorded against the real property commonly known as 127 Restore, Irvine, California 92618, Assessor’s Parcel No. 930-062-11 (the “Subject Property”), which was recorded in the Official Records of Orange County, California, on March 25, 2026, as Document No. 2026000086003. Defendant also requests attorney fees pursuant to Code of Civil Procedure section 405.38. Plaintiff Michael Blood (“Plaintiff”) opposes the motion. The Court finds that Plaintiff has carried his burden in establishing the probable validity of his real property claim(s) by a preponderance of the evidence and therefore the Motion is DENIED. A lis pendens will be expunged if: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32.) Thus, the party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) To overcome the motion to expunge, Plaintiff must establish “it is more likely than not it will obtain a judgment” on its real property claim. (Code Civ. Proc., § 405.) Plaintiff’s showing must be by a preponderance of the evidence. (Code Civ. Proc., § 405.32.) Here, Plaintiff has established the probable validity of his real property claim by a preponderance of the evidence. At the very least, Plaintiff has established the